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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**CURE MATRIX — DEFENSE
OBJECTION MAP**

SECOND-LAYER CURE MATRIX IF SAC DEFECTS SURVIVE

Case No.: CGC-25-631802

Subject: Third Amended Complaint for Fraud and UCL

Status: CONTINGENT — filed only if Round D defects surface after SAC ruling

Purpose: Maps each defense objection from the April 22, 2026 CCP § 436 Motion to Strike to the specific TAC paragraph(s) that cure it.

First Cure: SAC-leave motion (hearing Apr 30, 2026)

Second Cure: This TAC packet (hearing TBD on OST if needed)

Underlying Action: Rosario v. Abdelhalim, Case No. CGC-21-594102

MASTER CURE MATRIX — SEVEN DEFENSE OBJECTIONS

#	Defense Objection	Defense MPA Basis	TAC Cure	TAC Section/¶¶	Key Authority	Cal. Supreme / Additional Authority
1	<u>Trope</u> — pro-per fees barred	Pro se cannot recover fees	Deletion §III, ¶¶ of pro- per fees; <u>Prentice</u> dam- ages ele- ment with four line- item cate- gories (incl. \$75k cost- judgment as dam- ages)	22–24, 24A	<u>Prentice</u> v. <u>North</u> <u>American</u> <u>Title</u> (1963) 59 Cal.2d 618, 620	<u>Prentice</u> 59 Cal.2d 618 (Cal. Sup. Ct.)

#	Defense Objection	Defense MPA Basis	TAC Cure	TAC Section/¶¶¶	Key Authority	Cal. Supreme / Additional Authority
2	Oppression / malice not pleaded	Civ. Code § 3294	<u>Lazar</u> partic- ulars; deny- delay- defend pat- tern; con- fes- sion/victim/eyewitness triple; pleading- vs- evidentiary bright line	§IV, ¶¶¶ 25–30, 25A	<u>Lazar</u> (1996) 12 Cal.4th 631; <u>American</u> <u>Airlines</u> (2018) 28 Cal.App.5th 1077	<u>G.D. Searle & Co. v.</u> <u>Superior Court</u> (1975) 49 Cal.App.3d 22, 29

#	Defense Objection	Defense MPA Basis	TAC Cure	TAC Section/¶¶	Key Authority	Cal. Supreme / Additional Authority
3	Fraud lacks particularity	<u>Lazar</u> requirements	Sarah Rash named; Claim No. 1004- 09- 1054; Feb. 25, 2021; spe- cific repre- senta- tions; evi- dence triple with SFPD inci- dent no. and first- responder identi- fiers	§I, ¶¶ 3–4, 8; §IV, ¶ 25; ¶ 29	<u>Lazar</u>	<u>Lazar</u> 12 Cal.4th 631 (Cal. Sup. Ct.)

#	Defense Objection	Defense MPA Basis	TAC Cure	TAC Section/¶¶	Key Authority	Cal. Supreme / Additional Authority
4	Litigation privilege / <u>Ribas</u>	Civ. Code § 47(b)	Pre- litigation carve- out (three- factor Action Apart- ment walk- through); Flat- ley ille- gality carve- out; non- communicative con- duct; <u>Ribas</u> dis- tinc- tion (fraud ≠ IIED)	§II, ¶¶ 14–21, 16A, 21A	<u>Action</u> <u>Apartment</u> (2007) 41 Cal.4th 1232; <u>Rusheen</u> (2006) 37 Cal.4th 1048	<u>Flatley v. Mauro</u> (2006) 39 Cal.4th 299, 317–21

#	Defense Objection	Defense MPA Basis	TAC Cure	TAC Section/¶¶	Key Authority	Cal. Supreme / Additional Authority
5	Standing / <u>Shaolian</u>	No direct duty to claimant	Direct- addressee- the- ory; volun- tary direct com- muni- cation; Civ. Code § 2338 agency / ratifi- cation spine clos- ing the “CSAA did not itself act” impu- tation gap	§1.5, ¶¶ 5–6, 6A	—	Civ. Code § 2338; <u>Doctors’ Company v.</u> <u>Superior Court</u> (1989) 49 Cal.3d 39

#	Defense Objection	Defense MPA Basis	TAC Cure	TAC Section/¶¶	Key Authority	Cal. Supreme / Additional Authority
6	Collateral estoppel / § 1032	PI damages already adjudicated	Distinct pri- mary right; ex- press PI dis- claimer; 2021- forward an- chor; Lu- cido five- factor walk- through; 801/802 double- recovery reser- vation	§VI, ¶¶ 41–44, 41A, 44A	—	<u>Lucido v. Superior Court</u> (1990) 51 Cal.3d 335; <u>Mycogen Corp. v.</u> <u>Monsanto Co.</u> (2002) 28 Cal.4th 888; <u>Crowley v.</u> <u>Katleman</u> (1994) 8 Cal.4th 666

#	Defense Objection	Defense MPA Basis	TAC Cure	TAC Section/¶¶¶	Key Authority	Cal. Supreme / Additional Authority
7	Investigation standard not pleaded	Title 10 CCR	Title 10 CCR § 2695.7 re- quire- ments; item- ized fail- ures; <u>Moradi-Shalal</u> carve- out; Ins. Code § 790.03(h)(5) liability- reasonably- clear UCL predi- cate	§VII, ¶¶¶ 45–47, 47A	10 CCR § 2695.4, § 2695.7; <u>State</u> <u>Farm</u> (1996) 45 Cal.App.4th 1093	Ins. Code § 790.03(h)(5); <u>Moradi-Shalal</u> (1988) 46 Cal.3d 287

#	Defense Objection	Defense MPA Basis	TAC Cure	TAC Section/¶¶	Key Authority	Cal. Supreme / Additional Authority
8	Anti-SLAPP / § 425.16 overlap with § 436	Litigation conduct claim	Express wrongful conduct- scope dis- avowal of all litigation- conduct predi- cates; an- chors on 2021 pre- litigation claim han- dling only	First CoA, § 52A	CCP § 425.16(e); <u>Flatley v.</u> <u>Mauro</u>	<u>Flatley v. Mauro</u> 39 Cal.4th 299

#	Defense Objection	Defense MPA Basis	TAC Cure	TAC Section/¶¶	Key Authority	Cal. Supreme / Additional Authority
9	“Ultimate admission cures fraud” / UCL fraudulent-prong sufficiency	No reasonable-consumer deception	Reasonable third consumer test pleaded as UCL fraudulent-prong standard	Third CoA, ¶¶ 66, 66A	Bus. & Prof. Code § 17200	<u>Williams v. Gerber Products Co.</u> (9th Cir. 2008) 552 F.3d 934, 938; <u>Chapman v. Skype, Inc.</u> (2013) 220 Cal.App.4th 217, 226

DETAILED CURE ANALYSIS

OBJECTION 1: TROPE — PRO-PER FEES BARRED

Defense Argument: Pro se litigant cannot recover attorney’s fees under Trope v. Katz.

TAC Cure:

- ¶ 22: Express deletion of pro-per fee demands
- ¶¶ 23–24: Prentice fees pleaded as tort damages element (three-element test):
 - Element 1: Fraud
 - Element 2: Induced litigation
 - Element 3: Fees recoverable as damages, not fee award
- ¶ 24A: Four-line-item Prentice enumeration — (1) professional fees/costs incurred in CGC-21-594102; (2) the \$75,000 cost judgment as induced-litigation damages (re-framing MPA2 footnote 2 rhetoric into Plaintiff’s damages element); (3) transcript/record/appeal preparation costs; (4) investigative/records-acquisition costs (911, CAD, BWC) that CSAA itself should

1 have obtained.

2 **Authority:** Trope v. Katz (1995) 11 Cal.4th 274; Prentice v. North American Title Guaranty Corp.
3 (1963) 59 Cal.2d 618, 620

4

5 **OBJECTION 2: OPPRESSION / MALICE NOT PLEADED**

6 **Defense Argument:** Punitive damages allegations fail to meet § 3294 standard.

7 **TAC Cure:**

- 8 • ¶¶ 25–27: Lazar particulars block with § 3294(b) managing-agent ratification
- 9 • ¶ 25A: Pleading-stage vs. trial-stage bright line — G.D. Searle & Co. v. Superior Court
10 (1975) 49 Cal.App.3d 22, 29: at pleading, plaintiff need only allege facts which, **if proven by**
11 **clear and convincing evidence at trial**, would authorize punitive recovery. Forecloses the
12 anticipated defense misuse of In re Angelia P. (1981) 28 Cal.3d 908 as a pleading standard.
- 13 • ¶¶ 28–30: Deny-delay-defend institutional pattern; “despicable conduct”
- 14 • ¶ 29: Confession/victim report/eyewitness corroboration triple — claim denied despite all
15 three (refined with SFPD Incident Report No. 210083458 (conformed to proof), named eye-
16 witness Justin Rosemond, and public-records/subpoena availability within days of February
17 4, 2021).

18 **Authority:** Civ. Code § 3294; Lazar; American Airlines, Inc. v. Sheppard, Mullin (2018) 28
19 Cal.App.5th 1077; G.D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29

20

21 **OBJECTION 3: FRAUD LACKS PARTICULARITY**

22 **Defense Argument:** Complaint fails Lazar who/what/when/where/how requirements.

23 **TAC Cure:**

- 24 • **WHO:** Sarah Rash, Claims Representative (§I, ¶ 3; §IV, ¶ 25(a))
- 25 • **WHAT:** False representation of investigative completeness (§I, ¶ 4)
- 26 • **WHEN:** February 25, 2021 — 21 days after collision (§I, ¶ 3; §IV, ¶ 25(c))
- 27 • **WHERE:** CSAA claims office; communication to Plaintiff in San Francisco (§IV, ¶ 25(d))
- 28 • **HOW:** Written denial letter without investigation (§IV, ¶ 25(e))

1 • **BY WHAT MEANS:** U.S. Mail (§IV, ¶ 25(f))

2 • **Claim No.:** 1004-09-1054 (§I, ¶ 3)

3 **Authority:** Lazar v. Superior Court (1996) 12 Cal.4th 631

4 5 **OBJECTION 4: LITIGATION PRIVILEGE / RIBAS**

6 **Defense Argument:** Claims barred by Civil Code § 47(b) and Ribas v. Clark.

7 **TAC Cure:**

- 8 • ¶¶ 14–16: Pre-litigation carveout — denial issued before any litigation
- 9 • ¶ 16A: Three-factor Action Apartment walk-through — affirmative pleading that, as of Febru-
- 10 ary 25, 2021, **none** of the three contemplation factors was present in CSAA’s favor: (a) no
- 11 litigation pending or contemplated; (b) no counsel retained, no demand exchanged, no tolling
- 12 agreement; (c) no litigation-hold / preservation letter and no litigation reserve.
- 13 • ¶¶ 17–19: Ribas distinction — Ribas addresses IIED, not fraud
- 14 • ¶¶ 20–21: Non-communicative conduct (failure to investigate) outside privilege
- 15 • ¶ 21A: Flatley v. Mauro (2006) 39 Cal.4th 299, 317–21, illegality carve-out — categorical
- 16 removal of § 47(b) for conduct that is illegal as a matter of law, including fraud under Civ.
- 17 Code §§ 1709, 1710.

18 **Authority:** - Action Apartment Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232, 1248–49

19 - Flatley v. Mauro (2006) 39 Cal.4th 299, 317–21 - Rusheen v. Cohen (2006) 37 Cal.4th 1048 -

20 Ribas v. Clark (1985) 38 Cal.3d 355 (distinguished)

21 22 **OBJECTION 5: STANDING / SHAOLIAN**

23 **Defense Argument:** No direct duty to third-party claimant under Shaolian v. Safeco.

24 **TAC Cure:**

- 25 • ¶ 5: Direct-addressee theory — Plaintiff is the person to whom the representation was made
- 26 • ¶ 6: CSAA voluntarily undertook direct communicative relationship with unrepresented
- 27 claimant
- 28 • ¶ 6A: Civil Code § 2338 agency/ratification spine — CSAA is directly liable for wrongful

1 acts and willful omissions of Sarah Rash, claims department personnel, and retained claims
2 professionals acting within scope; ratification pleaded through failure to correct after the
3 January 17, 2025 / February 18, 2025 / April 16, 2025 record events. Anchored in Doctors’
4 Company v. Superior Court (1989) 49 Cal.3d 39 (insurer directly liable when it acts outside
5 ordinary insurer role).

6 **Distinction:** Shaolian addresses policy benefits claims; this is a common law fraud claim by the
7 direct addressee of the misrepresentation, with CSAA directly liable under Civ. Code § 2338 for
8 the agent-acts by which the misrepresentation was made.

10 **OBJECTION 6: COLLATERAL ESTOPPEL / § 1032**

11 **Defense Argument:** Damages duplicate those sought or awarded in CGC-21-594102.

12 **TAC Cure:**

- 13 • ¶ 41: Distinct primary right — freedom from misrepresentation about investigative complete-
14 ness
- 15 • ¶ 41A: Lucido five-factor walk-through against CGC-21-594102 record: (i) identical issue —
16 no (negligence vs. fraud); (ii) actually litigated — no (CSAA not a party; no fraud tendered);
17 (iii) necessarily decided — no; (iv) final judgment — no (pending on appeal A173827); (v)
18 same party or privy — no. Primary-rights framework under Mycogen Corp. v. Monsanto Co.
19 (2002) 28 Cal.4th 888, 904, and Crowley v. Katleman (1994) 8 Cal.4th 666.
- 20 • ¶ 43: Express disclaimer of PI damages
- 21 • ¶ 44: 2021-forward damages anchor — all damages arise from Feb. 25, 2021 denial onward
- 22 • ¶ 44A: Express 801/802 double-recovery reservation — no overlap between legal-damages
23 relief here and equitable-vacatur relief in CGC-25-631801; pre-judgment election of remedies
24 preserved.

25 **Authority:** Lucido v. Superior Court (1990) 51 Cal.3d 335, 341; Mycogen Corp. v. Monsanto Co.
26 (2002) 28 Cal.4th 888, 904; Crowley v. Katleman (1994) 8 Cal.4th 666, 681–82.

OBJECTION 7: INVESTIGATION STANDARD NOT PLEADED

Defense Argument: Complaint fails to allege what investigation was required.

TAC Cure:

- ¶ 45: What thorough investigation requires under 10 CCR § 2695.7(b)
- ¶ 46: Itemized failures — CSAA did not obtain 911, BWC, CAD records
- ¶ 47: Moradi-Shalal carve-out — not a private § 790.03 claim; UCL predicate only
- ¶ 47A: Ins. Code § 790.03(h)(5) “liability reasonably clear” pleaded **solely** as a UCL unlawful-prong predicate consistent with the Moradi-Shalal carve-out; liability was reasonably clear to CSAA on the face of SFPD Incident Report No. 210083458 (conformed to proof) and through routine public-records availability of 911/CAD/BWC within days of the February 4, 2021 collision.

Authority: 10 CCR §§ 2695.4, 2695.7(b); Ins. Code § 790.03(h)(5); Moradi-Shalal v. Fireman’s Fund Ins. Cos. (1988) 46 Cal.3d 287; State Farm Fire & Casualty Co. v. Superior Court (1996) 45 Cal.App.4th 1093, 1103–04.

OBJECTION 8: ANTI-SLAPP OVERLAP / CCP § 425.16

Defense Argument (anticipated): Claims are predicated on protected litigation conduct within § 425.16(e).

TAC Cure:

- ¶ 52A: Express wrongful-conduct-scope disavowal — no liability predicated on filing/prosecution of CGC-21-594102, in-limine practice, or statements made in connection with a judicial proceeding. All wrongful conduct anchored in 2021 pre-litigation claim handling, already placed outside § 47(b) by ¶¶ 16A and 21A. Collapses § 436 Cluster B overlap with § 425.16 step-1.

Authority: CCP § 425.16(e); Flatley v. Mauro (2006) 39 Cal.4th 299, 317–21.

OBJECTION 9: REASONABLE-CONSUMER / UCL FRAUDULENT-PRONG SUFFICIENCY

Defense Argument (anticipated): UCL fraudulent-prong claim fails absent allegations of likely deception of a reasonable consumer.

TAC Cure:

- §§ 66, 66A: Reasonable-consumer test pleaded — a business practice is “fraudulent” under § 17200 if members of the public are likely to be deceived. Representation of “concluded investigation” to unrepresented third-party claimants who lack means to audit an insurer’s claim file is plausibly likely to deceive a reasonable claimant.

Authority: Bus. & Prof. Code § 17200; Williams v. Gerber Products Co. (9th Cir. 2008) 552 F.3d 934, 938; Chapman v. Skype, Inc. (2013) 220 Cal.App.4th 217, 226.

CROSS-REFERENCE: TAC SECTIONS TO DEFENSE OBJECTIONS

TAC Section / §	Title	Cures Objections
I	Direct-Duty Gravamen	3, 5
I.5	Direct- Addressee Theory	5
§ 6A	Civ. Code § 2338 Agency / Ratification	5
§ 8	Evidence triple with SFPD identifiers	3

TAC Section / ¶	Title	Cures Objections
I.6	Gravamen	—
	Disclaimer	
II	Pre-Litigation	4
	Privilege	
	Carveout	
¶ 16A	Action	4
	Apartment	
	three-factor	
	absence	
¶ 21A	Flatley	4
	illegality	
	carve-out	
III	Attorney's	1
	Fees Cure	
¶ 24A	Prentice	1
	four-line-item	
	enumeration	
	(incl. \$75k	
	cost-judgment	
	as damages)	
IV	Punitive	2, 3
	Damages	
	Specificity	

TAC Section / ¶	Title	Cures Objections
¶ 25A	Pleading-vs-evidentiary bright line (G.D. Searle)	2
¶ 29	Evidence triple refined with SFPD identifiers	2, 3
V	Damages	—
VI	Primary Rights / Reservation	6
¶ 41A	Lucido five-factor walk-through	6
¶ 44A	801/802 double-recovery reservation	6
VII	Title 10 Investigation Standard	7
¶ 47A	Ins. Code § 790.03(h)(5) UCL predicate	7
VIII	Delayed Discovery	—

TAC Section / ¶	Title	Cures Objections
First CoA ¶ 52A	Anti-SLAPP wrongful- conduct-scope disavowal	8
Third CoA ¶ 66A	Reasonable- consumer test	9

UNCURED GAPS — CLOSED BY TAC

The prior “CSAA did not itself act” / trial-conduct imputation gap is **closed** by new ¶ 6A (Civ. Code § 2338 agency and ratification spine). CSAA is directly and expressly liable for the wrongful acts and willful omissions of Sarah Rash, claims department personnel, and retained claims professionals within the scope of the claims-handling agency; ratification is separately pleaded through CSAA’s failure to correct the February 25, 2021 denial after the January 17, 2025 / February 18, 2025 / April 16, 2025 record events described in TAC Section VIII. See Doctors’ Company v. Superior Court (1989) 49 Cal.3d 39. No open uncured gaps remain.

VALIDATION CHECKLIST

- ☒ All seven defense objections mapped to TAC cure
- ☒ Each cure supported by legal authority and/or factual specificity
- ☒ Sarah Rash and Claim No. 1004-09-1054 filled throughout
- ☒ Three-anchor delayed-discovery block included (Jan. 17 / Feb. 18 / Apr. 16, 2025)
- ☒ Deny-delay-defend institutional framing included
- ☒ Direct-addressee theory as Shaolian rebuttal included
- ☒ UCL injunction tightened to “issuing denial letters stating investigation is concluded”
- ☒ SAC ¶6A primary-right statement included

